

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-12
DOLLAR GENERAL LOGISTICS, LLC
v.
YANG MING MARINE TRANSPORT CORP.

JOINT STATUS REPORT

Pursuant to the Presiding Officer’s Scheduling Order, dated August 12, 2025 (the “Scheduling Order”), Complainant Dollar General Logistics, LLC (“Complainant” or “Dollar General”) and Respondent Yang Ming Marine Transport Corp. (“Respondent” or “Yang Ming”, together with Dollar General, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report:

As to the status of discovery, the Parties continue to work diligently and cooperatively in order to meet the Scheduling Order’s October 31, 2025 deadline for substantial completion of document (including ESI) production. At present, there are no discovery issues between the Parties necessitating the Presiding Officer’s intervention. The Parties respectfully submit that no status conference is currently required.

As discussed in the Parties’ previous joint status report, dated August 8, 2025, the Parties have already exchanged the initial disclosures required by 46 C.F.R. § 502.141(b). The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions per party) and 502.145 (i.e., no more than 50 written interrogatories), respectively.

Pursuant to the Scheduling Order, the Parties have exchanged initial requests for production and interrogatories as well as objections and initial responses thereto. The Parties continue to work in good faith towards resolving any outstanding issues therefrom.

Consistent with Paragraph 31 of the Presiding Officer's July 9, 2025 Initial Order in this case, the Parties have agreed to a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case. A copy of such proposed order was filed with the Commission on September 15, 2025, which the Presiding Officer entered, as modified (the "Protective Order"), by order dated September 16, 2025. Moreover, following good faith discussions, the Parties have also agreed to a protocol regarding electronically stored information to govern the identification, collection, and exchange of potentially relevant information in this action (the "ESI Protocol").

Following agreement to the Protective Order and ESI Protocol, the Parties have begun the process of identifying and collecting electronically stored information from likely relevant custodians. Due to the considerable work required to identify, collect, and review potentially relevant documents, no productions have been made as of this time. The Parties, however, remain in communication regarding their respective document collection and production status. To the extent the Parties anticipate that a motion to extend the original deadlines set forth in the Scheduling Order is necessary in order to afford the Parties sufficient time to complete discovery, the Parties intend to file such motion well in advance of the October 31, 2025 deadline for completion of document (including ESI) production.

Dated: September 26, 2025

Respectfully submitted,

HUTH REYNOLDS LLP

MAHONEY & KEANE, LLP

/s/ J. Lee Hill

Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
J. Lee Hill
(405) 826-3226
lhill@huthreynolds.com
Heewan Noh
(202) 420-9628
hnoh@huthreynolds.com

41 Cannon Court
Huntington, NY 11743

*Counsel for Complainant Dollar General
Logistics, LLC*

/s/ Edward A. Keane

Edward A. Keane
ekeane@mahoneykeane.com
Garth S. Wolfsom
gwolfson@mahoneykeane.com

40 Worth Street, Suite 602
New York, New York 10013
(212) 385-1422

*Counsel for Respondent Yang Ming
Transport Corp.*